

PureTask terms-of-service

PureTask – Terms of Service

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Version: 2.0

These Terms of Service (“**Terms**”) form a binding legal agreement between **PureTask LLC**, a California limited liability company (“**PureTask**,” “we,” “us,” or “our”), and you (“**you**,” “**your**,” or “**User**”). They govern your access to and use of the PureTask website, mobile applications, and related services.

PLEASE READ THESE TERMS CAREFULLY. They contain a **binding arbitration provision**, a **class-action waiver**, and a **jury-trial waiver** (Section 22) that materially affect your legal rights.

By creating an account, accessing, or otherwise using the Platform, you affirmatively agree to be bound by these Terms, our [Privacy Policy](#), [Cookie Policy](#), [Acceptable Use Policy](#), [Cancellation Policy](#), and (for Pros) the [Pro Independent Contractor Agreement](#) and [Standalone FCRA Disclosure and Authorization](#), each of which is incorporated by reference.

If you do not agree, you may not access or use the Platform.

1. Acceptance and Electronic Signatures

1.1 Method of Acceptance

You accept these Terms by clicking “**I Accept**” (or substantially similar button) during signup. You cannot use the Platform without affirmative acceptance.

1.2 Electronic Signatures (E-SIGN and UETA)

You consent to electronic execution of these Terms and all related documents. Under the **U.S. Electronic Signatures in Global and National Commerce Act (E-SIGN)**, **15 U.S.C. § 7001 et seq.**, and the **Uniform Electronic Transactions Act (UETA)** as adopted by California, Texas, and Florida, your electronic acceptance has the same legal effect as a handwritten signature.

1.3 Capacity

By accepting, you represent that you have legal capacity to bind yourself or the entity on whose behalf you act.

1.4 Electronic Records

You agree to receive all notices, disclosures, statements, and other communications from PureTask in electronic form (email, SMS, push notification, or in-app). You may request paper copies of any notice required to be provided in paper form by emailing **otherpuretask@gmail.com** with the subject “**Paper Notice Request.**”

1.5 Withdrawing Consent

You may withdraw consent to electronic delivery only by closing your account. PureTask does not offer in-product service while delivering communications by paper mail.

2. Definitions

For purposes of these Terms:

- **“Booking”** means a service engagement between a Client and Pro initiated and confirmed through the Platform.
 - **“Booking Facilitation Fee”** has the meaning in Section 6.2.
 - **“Client”** means an end user who uses the Platform to discover, book, and pay for cleaning services from Pros.
 - **“Operating States”** means the U.S. states where PureTask currently makes the Platform available: **California, Texas, and Florida.**
 - **“Platform”** means the PureTask website (including any successor or subdomain), mobile applications, and related services.
 - **“Platform Fee”** has the meaning in Section 6.2.
 - **“Pro”** means an independent cleaning professional who uses the Platform to offer and provide cleaning services to Clients. Pros are independent contractors operating their own businesses.
 - **“Pro Services”** means the cleaning services a Pro provides directly to a Client under a Pro-Client service contract.
 - **“Review Window”** has the meaning in Section 6.5.
 - **“Service Area”** means the geographic area in which a Pro chooses to make Pro Services available, within the Operating States.
 - **“User”** means any person who accesses or uses the Platform, including Clients, Pros, and visitors.
 - **“User Content”** has the meaning in Section 14.
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3. About PureTask

PureTask LLC operates a **technology platform** that helps Clients discover, schedule, communicate with, and pay independent cleaning professionals.

PureTask's usual course of business is the development and operation of marketplace software, the facilitation of introductions and bookings, payment-processing facilitation, dispute mediation, and trust-and-safety features. **PureTask is not a cleaning company.**

PureTask: - Develops and maintains the Platform software. - Facilitates introductions, bookings, scheduling, messaging, and payment. - Mediates disputes between Clients and Pros at its discretion. - Provides voluntary trust, safety, and quality-assurance features.

PureTask does **not**: - Perform cleaning services. - Employ Pros. - Direct the manner, means, or methods by which Pros provide their services. - Set required hours, supplies, equipment, transportation, or uniforms for Pros. - Set a minimum rate or wage for any individual Pro. - Guarantee the performance, qualifications, conduct, or character of any Pro or Client.

The service contract for any cleaning service is **directly between the Client and the Pro**. PureTask is not a party to that contract. PureTask acts as a **limited "agent of the payee"** solely for the purpose of accepting payment from the Client on behalf of the Pro, as described in Section 8.

4. Eligibility

4.1 All Users

To use the Platform you must:

1. Be at least **18 years of age** and have legal capacity to enter into a binding contract.
2. Reside in or perform services within one of the Operating States.
3. Not be barred from receiving the Services under applicable law, including U.S. export controls and economic sanctions administered by the **U.S. Department of Treasury Office of Foreign Assets Control (OFAC)**.

4. Provide accurate, current, and complete registration information.
5. If acting on behalf of a legal entity, have authority to bind that entity.

4.2 Pros – Additional Requirements

Pros must additionally:

1. Be legally authorized to work in the jurisdiction where services are performed.
2. Hold **at least one** of the following at all times during use of the Platform:
 - A valid **business license** issued by the state, county, or municipality in which they operate;
 - A valid **Employer Identification Number (EIN)** issued by the IRS; or
 - A valid **Certificate of Insurance** evidencing Commercial General Liability coverage of at least **\$300,000 per occurrence** and **\$1,000,000 aggregate**, naming PureTask LLC as an additional insured for ongoing operations.
3. Complete identity, background, and trust-and-safety screening conducted by PureTask's third-party vendors, pursuant to the separate **Standalone FCRA Disclosure and Authorization**.
4. Consent to **ongoing rechecks** of background and watchlist information at PureTask's discretion, no less than annually, with continued use of the Platform constituting renewed consent.
5. Maintain valid identification, tax documentation (e.g., IRS Form W-9), and any licenses or certifications required by applicable law.
6. Agree to the **Pro Independent Contractor Agreement** as a separate, signed document.

PureTask may refuse, suspend, or terminate access for any lawful reason in its sole discretion.

4.3 Geographic Coverage and Sanctions

The Platform is offered only in the Operating States. The Platform is not offered to persons or entities on any U.S. sanctions list (including the OFAC SDN List) or to persons in comprehensively sanctioned jurisdictions.

5. Accounts and Security

5.1 Credentials

You are responsible for maintaining the confidentiality of your login credentials and for all activities under your account.

5.2 Your Obligations

You agree to (a) provide accurate information; (b) promptly update changes; (c) notify us immediately at **otherpuretask@gmail.com** of any unauthorized use; and (d) log out at the end of each session on shared devices.

PureTask is not liable for losses arising from your failure to safeguard your credentials.

5.3 Prohibited Account Activity

You may not (i) share your account, (ii) create multiple accounts, (iii) impersonate any person or entity, (iv) use the Platform on behalf of any banned or suspended User, or (v) access the Platform through automated means (bots, scrapers) without prior written consent.

5.4 Account Recovery

If you lose access to your account, contact **otherpuretask@gmail.com** with the subject “**Account Recovery.**” PureTask will verify your identity before restoring access.

5.5 Third-Party Login (SSO/OAuth)

The Platform may support sign-in through third-party identity providers (e.g., Google, Apple). Use of such providers is governed by their terms. PureTask receives only the identifiers and basic profile information you authorize.

6. The Marketplace Model and Pricing

6.1 Marketplace Architecture

The Platform allows Clients to request, book, and pay for cleaning services from Pros who set their own rates (subject to a maximum-rate ceiling), set their own schedule and availability, choose which Booking offers to accept or decline without account penalty, provide their own tools and supplies, may freely work for other platforms or their own clients, and may subcontract or substitute another qualified, background-checked Pro through the Platform.

Bookings are Client-initiated. Eligible Pros may accept or decline any Booking offer without penalty. PureTask does not direct any Pro to accept any particular job, require Pros to log in at any time, require any minimum number of jobs, or require availability beyond what the Pro voluntarily chooses.

6.2 Pricing and Fees

Pros set their own service rates **subject only to a published maximum-rate ceiling** disclosed by PureTask. **PureTask does not set a minimum rate, wage floor, or surcharge for any individual Pro.**

PureTask charges: - A **Booking Facilitation Fee** to the Client at checkout; - A **flat per-Booking Platform Fee** deducted from the Pro's payout (no percentage commission); - **Pass-through fees** (rush, same-day, trust-and-safety, cancellation, taxes) where applicable.

All fees are disclosed before the Client confirms a Booking, consistent with the **California Honest Pricing Law (Cal. Bus. & Prof. Code § 17500.5)**, the **Texas Deceptive Trade Practices Act (Tex. Bus. & Com. Code Ch. 17)**, and the **Florida Deceptive and Unfair Trade Practices Act (Fla. Stat. Ch. 501)**.

6.3 Voluntary Trust and Safety Features

The following features are **voluntary** and not a condition of using the Platform, except where strictly necessary for safety or legal compliance: GPS arrival/departure check-in, before/after photos of the work area, in-app time tracking, and trust badges.

PureTask does **not** dictate the method of cleaning, the duration of any job (beyond Client-agreed scope), or the sequence of tasks performed.

6.4 Reliability Indicators

PureTask may display a voluntary Reliability Indicator on a Pro's public profile. It is informational only. PureTask **does not** use Reliability Indicators to set Pro compensation, restrict Platform eligibility, determine payout terms, or penalize Pros for declining Bookings.

6.5 The Review Window

After job completion, the Client has **24 hours** to approve the work (immediately releases payment) or dispute the work (pauses release pending resolution). If no action is taken within 24 hours, payment is automatically released and the Booking is final.

7. Payment, Funds Flow, and Tipping

7.1 Stripe Connect Express

PureTask does not hold User funds and is not a bank, money transmitter, stored-value issuer, or escrow agent.

Payments are processed by **Stripe, Inc.** using Stripe Connect Express:

1. At Booking confirmation, the Client is charged via Stripe.
2. Funds are held within Stripe's infrastructure (not in any PureTask account).
3. Upon job completion, the 24-hour Review Window begins.
4. After the Review Window closes, Stripe releases the Pro's share to the Pro's connected Stripe Express account, less the Platform Fee and any pass-through fees.
5. The Pro withdraws funds from their Stripe Express account to their bank.

7.2 Agent of the Payee

PureTask acts solely as a **limited agent of the payee (the Pro)**. This is intended to qualify for the "agent of the payee" exemption under the **California Money Transmission Act, Cal. Fin. Code § 2010(1)**, **Texas Finance Code § 151.302**, and **Florida Statutes § 560.103(23)**.

7.3 Tipping

Clients may add a voluntary tip after completion. Tips are paid in full to the Pro, less only Stripe's processing fee on the tip. **PureTask retains no portion** of any tip.

7.4 Disputes

PureTask may mediate disputes but does **not adjudicate** or guarantee outcomes. Outcomes may include partial refunds, re-do bookings, or no action, at PureTask's reasonable discretion. Either party retains the right to pursue claims directly.

7.5 Chargebacks

If a Client initiates a chargeback, Stripe and PureTask may (i) provide documentation, (ii) freeze the disputed amount, (iii) offset future payouts to recover Pro-attributable amounts, and (iv) suspend accounts pending resolution.

7.6 Taxes

Each User is solely responsible for federal, state, and local taxes. Stripe issues **IRS Form 1099-K** to Pros. PureTask does **not** issue Form W-2 or Form 1099-NEC. PureTask may withhold platform services pending receipt of a valid Form W-9.

Where state law requires PureTask, as a marketplace facilitator, to collect and remit sales or use tax, PureTask will do so.

8. Limited Agent-of-the-Payee Authority

The agency authority in Section 7.2 is limited solely to accepting payment from the Client on behalf of the Pro. It does not extend to negotiating, modifying, or settling the underlying service contract; does not make PureTask responsible for the Pro's performance; does not entitle PureTask to direct, supervise, or control the Pro; and terminates upon disbursement of funds.

9. Cancellations and Refunds

Cancellations are governed by the **Cancellation Policy**, which is disclosed in the booking flow before payment is authorized. All fees are disclosed up front consistent with applicable consumer-protection laws.

10. Trust, Verification, and Background Checks

10.1 Screening

PureTask performs identity verification, background checks, watchlist screening, and other trust-and-safety checks on Pros through third-party vendors, only pursuant to the separate **Standalone FCRA Disclosure and Authorization** signed at signup.

10.2 Ongoing Rechecks

Pros consent to **ongoing rechecks** at PureTask's discretion, no less than annually. Continued use of the Platform constitutes renewed consent.

10.3 Rights

Pros have the right to (a) request a copy of any consumer report, (b) dispute accuracy directly with the consumer reporting agency, and (c) receive pre-adverse and adverse-action notices.

10.4 No Guarantee

PureTask's verification does **not** constitute a guarantee, warranty, or endorsement of any User.

11. Insurance

11.1 PureTask Insurance

PureTask maintains the following insurance at commercially reasonable levels: - **Commercial General Liability (CGL)** — for PureTask's premises and operations; - **Technology Errors and Omissions / Cyber Liability** — for Platform-related claims; - **Umbrella Liability** — for excess coverage.

PureTask's insurance is for **PureTask's own operations** as a technology platform. It does **not** cover the Pro's cleaning services or the Pro's liability to Clients.

11.2 Pro Insurance Requirements

Pros are responsible for their own insurance, including (at minimum) the Commercial General Liability coverage in Section 4.2(2)(c) if relying on insurance for eligibility, and any workers' compensation insurance required by law for their own employees.

11.3 Client Property and Renter/Homeowner Insurance

PureTask does **not** insure Clients' property. Clients are encouraged to verify their renter's or homeowner's insurance for theft and damage coverage. Property damage caused by a Pro is the responsibility of that Pro and their insurance, not PureTask.

12. Ratings, Reviews, and Trust Signals

Users may submit honest, first-hand ratings and reviews following a completed Booking. Reviews must be truthful and free of unlawful, harassing, or false content. PureTask may, but is not required to, moderate or remove violating reviews.

PureTask does **not** retaliate against any User for posting a truthful negative review. Retaliatory conduct in response is grounds for suspension or termination.

13. Modifications to the Platform

PureTask may, at its discretion and without notice, modify, suspend, or discontinue any feature of the Platform; impose limits on use; or release beta, experimental, or test features ("**Beta Features**"). Beta Features are provided "as is" with no warranty. PureTask is not liable for modification, suspension, or discontinuation.

14. User Content; Feedback

14.1 User Content

“User Content” means any content you submit through the Platform, including listings, messages, photos, reviews, and profile information.

You retain ownership of User Content. You grant PureTask a worldwide, non-exclusive, royalty-free, sublicensable, transferable license to use, host, store, reproduce, modify, create derivative works, display, perform, and distribute User Content for the purpose of operating, providing, improving, marketing, and securing the Platform.

You represent and warrant that you own or have all necessary rights to your User Content, that it does not infringe any third-party rights or violate applicable law, and that PureTask’s license does not require payment to any third party.

14.2 Feedback

If you provide suggestions, ideas, enhancements, or feedback about the Platform (**“Feedback”**), you grant PureTask an unrestricted, perpetual, irrevocable, royalty-free license to use the Feedback for any purpose without obligation to you. You waive any moral rights in the Feedback.

14.3 DMCA Copyright Policy

PureTask complies with the **Digital Millennium Copyright Act (DMCA)**, 17 U.S.C. § 512. To submit a copyright takedown notice, send the following to our **Designated DMCA Agent**:

- Identification of the copyrighted work;
- Identification of the allegedly infringing material and its location on the Platform;
- Your contact information (name, address, phone, email);
- A good-faith statement that the use is unauthorized;

- A statement, under penalty of perjury, that the information is accurate and you are authorized to act;
- Your physical or electronic signature.

Designated DMCA Agent PureTask LLC, attn: DMCA Agent
 Sacramento, California [STREET ADDRESS TO BE ADDED]
 Email: **otherpuretask@gmail.com**, Subject: **"DMCA Notice"**

*Registered with the U.S. Copyright Office DMCA
 Designated Agent Directory.*

Repeat infringers' accounts will be terminated. Counter-notice may be submitted under 17 U.S.C. § 512(g).

15. Prohibited Conduct

You agree not to:

1. Use the Platform for any unlawful, fraudulent, harmful, or deceptive purpose;
2. Solicit any User to transact outside the Platform to avoid fees (subject to Section 15.A);
3. Misrepresent identity, qualifications, services, or property;
4. **Discriminate** in violation of the **Unruh Civil Rights Act (Cal. Civ. Code § 51)**, the **Texas Human Resources Code**, the **Florida Civil Rights Act (Fla. Stat. Ch. 760)**, or federal law;
5. Harass, threaten, defame, stalk, or otherwise harm any person;
6. Upload viruses, malware, or other malicious code;
7. Scrape, crawl, harvest, or copy data from the Platform without consent;
8. Reverse engineer, decompile, or attempt to derive source code, except where applicable law expressly permits (e.g., good-faith security research under **17 U.S.C. § 1201(j)**);
9. Use the Platform to launder money, finance terrorism, or violate sanctions;
10. Interfere with the security or integrity of the Platform; or
11. Violate any provision of the Acceptable Use Policy.

15.A Platform Attribution Fee (in lieu of non-circumvention)

PureTask does not restrict Pros from working with Clients off the Platform. However, **during an active Booking and for 30 days thereafter**, if a Client books the same Pro outside the Platform for substantially similar services, the Client agrees to pay PureTask a one-time **Platform Attribution Fee** equal to the Booking Facilitation Fee that would have applied to one off-Platform Booking, as **liquidated damages**. The parties agree this is a reasonable estimate of damages and not a penalty.

Outside the 30-day window, there are **no restrictions** on Users transacting with each other.

This section is intended to comply with **California Business & Professions Code § 16600, SB 699**, and analogous laws.

16. Independent Pro Provisions

Pros expressly agree to the **Pro Independent Contractor Agreement**, signed separately. Headline terms:

1. Pros are **independent contractors**, not employees, agents, joint venturers, or partners.
2. Pros **control the manner and means** of their work; set their own schedules, rates, methods, tools, and supplies; and may freely work for competitors.
3. Pros operate an **independently established trade**, evidenced by their business license, EIN, or insurance.
4. Pros are solely responsible for taxes, insurance, equipment, supplies, and law compliance.
5. Pros may subcontract or substitute qualified replacements.
6. PureTask is a **limited agent of the payee** only.

This relationship is intended to satisfy the multi-factor IC tests in California (ABC under Lab. Code § 2775 + Borello), Texas (Lab. Code § 201.041 + IRS test), and Florida (Fla. Stat. § 440.02(15)(d) +

common-law test).

17. Intellectual Property

17.1 PureTask's IP

The Platform — software, designs, text, graphics, logos, the names “**PureTask**” and “**Dash**,” the “P” house mark, and all trademarks and trade dress — is owned by PureTask LLC or its licensors. PureTask grants you a limited, revocable, non-exclusive, non-transferable, non-sublicensable license to use the Platform for its intended purpose. All other rights reserved.

17.2 Trademark and Brand Use

You may not use PureTask trademarks, logos, or brand assets for commercial purposes without prior written consent. Limited reference uses (news reporting, comparative reviews) are permitted under nominative fair use. Press, partnership, or advertising inquiries: otherpuretask@gmail.com, subject “**Brand Use**.”

17.3 No Endorsement

Use of the Platform does not entitle you to claim PureTask's endorsement.

18. Third-Party Services

The Platform integrates with third-party services (Stripe, Google Maps, Supabase, OneSignal, background-check vendors). PureTask does not control these services and is not responsible for their content, security, or performance. Your use is governed by their respective terms.

19. Mobile Application Stores (Apple App Store / Google Play)

19.1 Apple-Specific Terms

You acknowledge these Terms are between you and PureTask only — **not** with Apple, Inc. (“**Apple**”). PureTask, not Apple, is solely responsible for the iOS application. Apple has no obligation to provide maintenance or support. To the maximum extent permitted by law, Apple has no warranty obligation. Apple is **not responsible for product liability**, IP infringement claims, or compliance with consumer-protection laws regarding the iOS app. **Apple and its subsidiaries are third-party beneficiaries** of these Terms and may enforce them. You represent that you are not in a U.S.-embargoed country or on any U.S. prohibited-party list.

19.2 Google-Specific Terms

For Android users, Google has no obligation to provide maintenance or support and is not liable for any claims relating to the Android app. Use is also subject to the Google Play Terms of Service.

20. Disclaimers

THE PLATFORM AND ALL SERVICES, INFORMATION, AND CONTENT ARE PROVIDED “**AS IS**” AND “**AS AVAILABLE**,” WITHOUT WARRANTIES OF ANY KIND, EXPRESS, IMPLIED, OR STATUTORY, INCLUDING WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, NON-INFRINGEMENT, ACCURACY, AND QUIET ENJOYMENT.

WITHOUT LIMITING THE FOREGOING, PURETASK DOES NOT WARRANT THAT (i) THE PLATFORM WILL BE UNINTERRUPTED, SECURE, OR ERROR-FREE; (ii) ANY PRO WILL ARRIVE, PERFORM, OR COMPLETE SERVICES TO ANY STANDARD; (iii) ANY USER IS WHO THEY CLAIM TO BE; OR (iv) ANY USER CONTENT IS ACCURATE OR LAWFUL.

PURETASK IS NOT A PARTY TO THE SERVICE CONTRACT BETWEEN CLIENT AND PRO AND DISCLAIMS ALL LIABILITY ARISING FROM THE PERFORMANCE OR NON-PERFORMANCE OF CLEANING SERVICES, INCLUDING PROPERTY DAMAGE, PERSONAL INJURY, THEFT, AND DISPUTES.

BETA FEATURES ARE PROVIDED "AS IS" WITH NO WARRANTY.

Nothing excludes liability that cannot be excluded under applicable law, including under **Cal. Civ. Code § 1668** for willful acts or violations of law.

21. Limitation of Liability

TO THE MAXIMUM EXTENT PERMITTED BY LAW:

1. PURETASK LLC, ITS **MEMBERS, MANAGERS, OFFICERS, EMPLOYEES, CONTRACTORS, AND AGENTS** SHALL NOT BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, EXEMPLARY, OR PUNITIVE DAMAGES, INCLUDING LOST PROFITS, LOST DATA, LOSS OF GOODWILL, BUSINESS INTERRUPTION, OR THE COST OF SUBSTITUTE SERVICES.
2. PURETASK'S TOTAL AGGREGATE LIABILITY SHALL NOT EXCEED THE GREATER OF (a) THE TOTAL FEES PAID BY YOU TO PURETASK IN THE SIX (6) MONTHS PRECEDING THE EVENT, OR (b) ONE HUNDRED U.S. DOLLARS (\$100).

THESE LIMITATIONS **DO NOT APPLY** TO: - LIABILITY THAT CANNOT BE LIMITED UNDER APPLICABLE LAW; - GROSS NEGLIGENCE OR WILLFUL MISCONDUCT; - FRAUD; - INDEMNIFICATION OBLIGATIONS UNDER THE PRO INDEPENDENT CONTRACTOR AGREEMENT FOR MISCLASSIFICATION CLAIMS.

22. Governing Law; Arbitration; Class-Action and Jury-Trial Waivers

22.1 Governing Law

California law governs, without regard to conflict-of-laws rules. Nothing deprives Users of mandatory consumer protections under their home-state laws.

22.2 Informal Resolution

Before any formal proceeding, contact **otherpuretask@gmail.com** with a written description of the dispute and negotiate in good faith for at least **60 days**.

22.3 Binding Arbitration

If not resolved informally, all disputes shall be resolved by **final and binding arbitration administered by JAMS** under its Streamlined Arbitration Rules, in Sacramento, California, before a single arbitrator.

PureTask will pay all JAMS filing and arbitrator fees that exceed court-equivalent costs, consistent with **Armendariz v. Foundation Health, 24 Cal. 4th 83 (2000)**.

For mass-filings of 25+ similar claims by the same or coordinated counsel, the parties follow the **JAMS Mass Arbitration Procedures and Guidelines** in effect at filing.

22.4 Class-Action Waiver

ALL CLAIMS MUST BE BROUGHT IN AN INDIVIDUAL CAPACITY AND NOT AS A PLAINTIFF OR CLASS MEMBER IN ANY PURPORTED CLASS, COLLECTIVE, CONSOLIDATED, OR REPRESENTATIVE PROCEEDING. If this waiver is held unenforceable, Section 22.3 is void.

22.5 Jury-Trial Waiver

TO THE MAXIMUM EXTENT PERMITTED BY LAW, EACH PARTY WAIVES ANY RIGHT TO TRIAL BY JURY IN ANY ACTION ARISING OUT OF OR RELATING TO THESE TERMS OR THE PLATFORM. This waiver applies in any court proceeding not subject to arbitration.

22.6 Preservation of Public Injunctive Relief

Claims for **public injunctive relief** under **McGill v. Citibank, 2 Cal. 5th 945 (2017)** may be brought in Sacramento County courts and are not subject to arbitration or the class-action waiver.

22.7 PAGA Claims

The **individual portion** of any California PAGA claim is subject to arbitration; the **non-individual (representative) portion** may proceed in court, consistent with **Adolph v. Uber, 14 Cal. 5th 1104 (2023)**.

22.8 Exceptions

Either party may bring (a) individual claims in **small-claims court** and (b) **IP injunction actions** in Sacramento County courts.

22.9 Opt-Out

You may opt out of Sections 22.3, 22.4, and 22.5 by sending written notice within **30 days** of first acceptance to **otherpuretask@gmail.com**.

23. Disputes Between Users

PureTask is **not a party** to the Client-Pro contract. You agree:

- To attempt good-faith resolution directly;
- To use PureTask's in-app dispute process as the first formal step;
- That PureTask's mediation is non-binding and PureTask may decline to intervene;

- To **release PureTask** from any claim arising from disputes between Users (subject to the Section 21 carve-outs).

This release is intended as a **California Civil Code § 1542 waiver** as to PureTask only: “A general release does not extend to claims that the creditor or releasing party does not know or suspect to exist in his or her favor at the time of executing the release, which if known by him or her would have materially affected his or her settlement with the debtor or released party.” You expressly waive § 1542 as to PureTask’s role in User-vs-User disputes.

24. Term, Suspension, and Termination

24.1 Term

These Terms remain in effect while you use the Platform.

24.2 Termination by You

You may close your account at any time via account settings or by emailing **otherpuretask@gmail.com**, subject “**Account Closure**.”

24.3 Termination by PureTask

PureTask may suspend or terminate access, with or without notice, for any breach, suspected fraud, risk, or as required by law.

24.4 Survival

Sections **2, 7, 8, 11, 14, 15, 16, 17, 20, 21, 22, 23, 24.4, 25, 26, and 27** survive termination.

25. Communications Consent

By providing your phone number and opting in, you consent to receive **transactional** SMS, email, and push notifications.

Marketing communications require **separate, affirmative opt-in**

under the **SMS/TCPA Consent Disclosure** and the **TCPA, 47 U.S.C. § 227**. Message and data rates may apply. Reply STOP / HELP for SMS opt-out or help.

26. California Consumer Notice (Cal. Civ. Code § 1789.3)

Under **California Civil Code § 1789.3**:

The provider of this service is **PureTask LLC**, located in **Sacramento, California**. To contact PureTask, email **otherpuretask@gmail.com**.

If you have a complaint, you may contact the **Complaint Assistance Unit of the Division of Consumer Services of the California Department of Consumer Affairs** in writing at **1625 North Market Blvd., Suite N-112, Sacramento, CA 95834**, or by telephone at **(800) 952-5210** or **(916) 445-1254**.

27. General Provisions

27.1 Notices

Notices to you may be sent by email to the address on file or by in-app notification. Notices to PureTask: **PureTask LLC, otherpuretask@gmail.com**, with appropriate subject line.

27.2 Assignment

You may not assign without our consent. PureTask may assign freely.

27.3 Force Majeure

Neither party is liable for failure or delay caused by events beyond reasonable control (acts of God, war, civil unrest, labor disputes, internet outages, governmental actions, pandemics, natural

disasters).

27.4 No Third-Party Beneficiaries

Except as expressly provided (Apple and Google in Section 19), no third-party-beneficiary rights are created.

27.5 No Waiver

Failure to enforce any provision is not a waiver.

27.6 Severability

If any provision is unenforceable, the remainder remains in effect, and the unenforceable provision is modified to the minimum extent necessary.

27.7 Interpretation

Headings are for convenience only. “Including” and “include” mean “including without limitation.” Singular includes plural and vice versa.

27.8 Entire Agreement

These Terms, with the incorporated documents, constitute the entire agreement and supersede all prior agreements.

27.9 Government End Users

The Platform is a “commercial item” under FAR 2.101. If acquired by a U.S. Government agency, use is subject to these Terms only.

27.10 Changes

We may update these Terms with no less than **30 days’** notice for material changes affecting your rights. Continued use constitutes acceptance.

Contact: PureTask LLC · Sacramento, California ·
otherpuretask@gmail.com

This document is a general template. It is not legal advice. Engage a licensed California attorney to review and adapt it before relying on it.